

**RESOLUTION OF THE BOARD OF EDUCATION OF THE [DISTRICT] SCHOOL
DISTRICT**

The [District] School District Board of Education (the "Board") met electronically in regular session on the ____ day of ____, 2021, with the following members present:

_____ moved for the adoption of the following Resolution:

RESOLUTION #_____

**A RESOLUTION GRANTING THE SUPERINTENDENT AUTHORITY
TO PROHIBIT RETENTION OF CERTAIN STUDENTS UNDER THE THIRD
GRADE READING GUARANTEE IN ACCORDANCE WITH HB 409**

WHEREAS, on January 7, 2021, the Governor of Ohio signed into law Amended House Bill 409 ("HB 409"), addressing urgent needs of the State in response to the ongoing COVID-19 pandemic;

WHEREAS, the Ohio Revised Code sets forth the minimum reading requirements for a student to advance to the Fourth Grade;

WHEREAS, with respect to the third grade reading guarantee, Section 4 of HB 409 prohibits school districts from retaining students in the third grade based solely on a student's academic performance in reading in the 2020-2021 school year, unless the principal of the school building in which a student is enrolled and the student's reading teacher agree that the student is reading below grade level and is not prepared to be promoted to the fourth grade; and

WHEREAS, the Board wishes to authorize the Superintendent to advance third grade students to the fourth grade in accordance with HB 409.

NOW, THEREFORE, BE IT RESOLVED by the Board:

Section 1. Pursuant to HB 409, the Board hereby authorizes the Superintendent to prohibit the retention of a student in the third grade based solely on a student's academic performance in reading in the 2020-2021 school year, unless the principal of the school

building in which a student is enrolled and the student's reading teacher agree that the student is reading below grade level and is not prepared to be promoted to the fourth grade. To the extent that this resolution conflicts with any current Board policy, the directives in this resolution shall prevail over any such policy provisions.

Section 2. The Board President, the Superintendent, and/or the Treasurer are authorized and directed to take all other such actions as are necessary or appropriate to accomplish the objectives of this Resolution, including but not limited to, arranging for the principal(s) and reading teachers to consult on a remote basis in order for them to determine whether a student is reading below grade level and is not prepared to be promoted to the fourth grade.

Section 3. It is hereby found and determined that all formal actions of this Board concerning and relating to the adoption of this Resolution were adopted in an open meeting held electronically by this Board, and that all deliberations of this Board and any of its committees that resulted in such formal action were in meetings open to the public or in executive session as permitted by Ohio law.

Section 4. This Resolution shall take effect and be in force from and after the earliest period allowed by law.

Upon roll call, the vote resulted as follows:

_____	_____
_____	_____
_____	_____
_____	_____
_____	_____

ADOPTED by the [District] School District Board of Education this ____day of _____, 2021.

CERTIFICATION OF TREASURER

I, [Treasurer name], Treasurer of the Board of Education of the [District] School District, hereby certify that the foregoing is a true and correct copy of a Resolution duly adopted by said Board of Education at its regular meeting on _____, 2021.

Treasurer
[District] School District
Board of Education

